Molina Growth
UK | US

MOLINA GROWTH AGENCY

BUSINESS MARKETING SERVICES AGREEMENT — ENGLAND AND WALES

Governing law: England and Wales | Exclusive jurisdiction: courts of England and Wales

1. PARTIES AND BUSINESS-TO-BUSINESS STATUS

This Business Marketing Services Agreement (the “Agreement”) is made between: Service Provider: Vinicius Conceição Molina, an individual based in Brazil, trading as Molina Growth Agency. Country of residence/business establishment: Brazil. Email: molinagrowthagency@gmail.com. and the business customer identified in the Plan Details and Client Information section below (“Client”). The Service Provider and the Client are each a “Party” and together the “Parties”. The Client confirms that it enters into this Agreement wholly or mainly for purposes relating to its trade, business, craft or profession, and not as a consumer. The Client must provide accurate legal/business details. If the Client is in fact acting as a consumer, this business-only Agreement must not be used; mandatory consumer rights may apply regardless of the wording of this clause.

2. PURPOSE AND SCOPE OF SERVICES

The Service Provider will provide the marketing services included in the specific plan selected by the Client on the Molina Growth Agency website and recorded in the Plan Details and Client Information section of this Agreement (the “Selected Plan”). The Selected Plan’s name, description, deliverables, service limits, price, billing currency, billing frequency, start date and any plan-specific conditions form part of this Agreement. The Selected Plan details displayed at checkout and accepted by the Client, together with the order confirmation and version/date of the plan description, will be incorporated into and form part of this Agreement. Services may include strategy, campaign planning, paid advertising management, campaign optimisation, reporting, creative direction, copywriting, lead-generation support and related marketing work, but only to the extent included in the Selected Plan. Anything not included in the Selected Plan is excluded and may be quoted separately. If there is a conflict between this Agreement and the Selected Plan description, the specific plan description will prevail only in relation to the scope, deliverables, service limits, price and billing frequency; the remaining terms of this Agreement will continue to apply.

3. TERM, BILLING CYCLE AND CANCELLATION

This Agreement starts on the date the Client accepts it and the Service Provider confirms the order, or on another start date stated in the order confirmation (the “Start Date”). There is no minimum twelve (12)-month commitment and no fixed-term lock-in under this Agreement. The Selected Plan will be billed at the price and frequency shown at checkout (for example, monthly or as otherwise expressly selected). Where the Selected Plan is a recurring subscription, it will renew for successive billing periods unless cancelled in accordance with this Agreement and the cancellation instructions made available to the Client. The Client may cancel a recurring plan by giving notice through the cancellation method stated on the website or by emailing molinagrowthagency@gmail.com. Unless the Selected Plan or mandatory law provides otherwise, cancellation will take effect at the end of the then-current paid billing period, and no further recurring charges will be made after that period. The Client will remain responsible for charges properly incurred up to the

effective cancellation date. Any change to the Selected Plan, including an upgrade or downgrade, must be confirmed by the Client and will take effect on the date and under the pricing shown in the relevant website confirmation.

4. FEES, INVOICING AND PAYMENT

The Client must pay the price, in the currency and according to the billing frequency shown for the Selected Plan at checkout and recorded in the order confirmation. Unless the Selected Plan states otherwise, recurring fees are charged in advance at the beginning of each billing period. The Client authorises the Service Provider or its payment processor to process payments using the payment method selected by the Client. Fees are exclusive of applicable taxes, duties or similar charges, which will be added where legally required. The Client is responsible for bank, transfer, currency-conversion and payment-provider charges imposed on its payment. The Client must raise any genuine billing dispute promptly and in good faith, identifying the disputed amount and reasons; undisputed amounts remain payable on time. Any one-time setup fee, discount, trial period, promotional price or additional charge must be disclosed in the Selected Plan or at checkout before the Client accepts the purchase.

5. ADVERTISING BUDGET AND THIRD-PARTY COSTS

The Service Provider's fees do not include advertising spend or charges from Google Ads, Meta Ads (Facebook/Instagram), other media platforms, publishers, lead marketplaces, stock libraries, software providers, hosting providers, payment processors or other third parties, unless the Statement of Work expressly says otherwise. Where possible, the Client will pay advertising platforms and third-party suppliers directly using accounts and payment methods under the Client's control. The Client is solely responsible for its media budget, platform charges, taxes and third-party subscriptions. Any amount advanced by the Service Provider on the Client's behalf must be reimbursed in accordance with the relevant written approval and invoice. Advertising spend is not part of the Service Provider's service fee and is not refundable by the Service Provider once charged or spent by a third party.

6. CLIENT RESPONSIBILITIES AND APPROVALS

The Client must provide timely access to relevant advertising accounts, websites, analytics, business information, brand assets, customer materials, approvals and other items reasonably required to perform the Services. The Client is responsible for the accuracy, legality and completeness of all information, claims, offers, prices, testimonials, images and materials it supplies or approves. The Client must ensure it has all rights, permissions, consents and legal bases required for the use of its materials and customer data. The Client must review and approve campaign materials, landing pages, offers and budgets before publication. Delays, incomplete information, restricted access or late approvals may affect timelines and results; the Service Provider is not responsible for resulting delay or underperformance.

7. NO GUARANTEE OF RESULTS

The Client acknowledges that marketing outcomes depend on factors outside the Service Provider's control, including market conditions, competition, budget, pricing, sales processes, customer demand, platform algorithms, policy decisions, account history, website performance and the Client's responsiveness. The Service Provider does not guarantee any specific number or quality of leads, enquiries, appointments, sales, revenue, profit, return on advertising spend (ROAS), ranking, reach, conversion rate or business growth.

Forecasts, targets and estimates are indicative only unless expressly stated as a binding deliverable in the Statement of Work.

8. CANCELLATION, SUSPENSION AND REFUNDS

The Client may cancel the Selected Plan at any time using the cancellation method stated on the Molina Growth Agency website or by emailing molinagrowthagency@gmail.com. There is no twelve (12)-month minimum commitment and no early termination fee solely because the Client cancels before twelve months. For recurring plans, unless the Selected Plan or mandatory law states otherwise, cancellation takes effect at the end of the current paid billing period. The Client remains responsible for fees for Services provided, work performed, approved expenses and other amounts properly incurred up to that date. Fees already paid for a billing period are not automatically refundable merely because the Client has chosen not to use the remaining Services during that period, except where a refund is expressly stated in the Selected Plan or required by applicable law. Where a refund is legally due or expressly promised, it will be calculated fairly, taking account of Services already performed and any lawful deductions. Advertising spend and third-party charges already incurred, charged or spent are not refundable by the Service Provider. Any refund due will be paid within thirty (30) days after the final calculation and receipt of any information reasonably needed to process it. The Service Provider may suspend or terminate Services for non-payment, material breach, unlawful instructions, misuse of the Services or other grounds permitted under this Agreement and applicable law. Where reasonably possible, the Service Provider will give notice and an opportunity to remedy the issue before suspension or termination.

9. LATE PAYMENT, SUSPENSION AND COLLECTION

If an undisputed invoice remains unpaid after its due date, the Service Provider may charge interest and recover reasonable recovery costs in accordance with the Late Payment of Commercial Debts (Interest) Act 1998, where applicable, or other applicable law. The Service Provider may suspend Services, pause campaigns under its management or withhold non-essential deliverables after giving written notice of non-payment. Suspension does not waive the Client's payment obligations or extend the minimum term unless agreed in writing.

10. INTELLECTUAL PROPERTY AND ACCOUNT OWNERSHIP

Each Party retains ownership of materials, software, processes, templates, know-how, methodologies, tools and intellectual property it owned or developed independently before or outside this Agreement ("Background IP"). The Service Provider retains all rights in its Background IP and general skills and know-how. Subject to full payment of all amounts due, the Service Provider assigns to the Client the intellectual property rights in final, bespoke deliverables created specifically for the Client under the Statement of Work, to the extent those rights are owned by the Service Provider and capable of assignment. Until full payment, the Client receives a limited, revocable licence to review the deliverables internally. Third-party materials, platform tools, fonts, stock assets, software and open-source materials remain subject to their own licence terms. The Service Provider may use its general experience and non-confidential know-how in other work. The Client owns and retains administrative control of its advertising accounts, business pages, domains, websites, analytics and customer data. The Client will grant the Service Provider only the access reasonably required to perform the Services.

11. CONFIDENTIALITY

Each Party must keep confidential the other Party's non-public business, technical, financial, customer and operational information received in connection with this Agreement and use it only to perform or receive the Services. This obligation does not apply to information that is public through no breach, already lawfully known, independently developed, or lawfully received from another source. A Party may disclose confidential information where required by law, provided it gives notice where legally permitted. These obligations continue for three (3) years after termination; trade secrets remain protected for as long as they qualify as trade secrets.

12. DATA PROTECTION

Each Party must comply with applicable data protection and privacy laws, including the UK GDPR and Data Protection Act 2018 to the extent applicable. The Client is responsible for determining its lawful basis for collecting and using personal data and for providing required privacy information to individuals. The Service Provider will process personal data only as necessary to provide the Services and in accordance with the Client's documented instructions where it acts as a processor. If the Services require the Service Provider to process personal data on the Client's behalf, the Parties will put in place any legally required data processing terms, including details of the processing, security measures, subprocessors, assistance, breach notification, deletion/return and international transfers. The Client must not provide special category or other sensitive personal data unless expressly agreed in writing and lawful safeguards are in place.

13. LIABILITY

Nothing in this Agreement excludes or limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability that cannot lawfully be excluded or limited. Subject to the preceding paragraph, neither Party is liable to the other for indirect or consequential loss, loss of profits, loss of revenue, loss of anticipated savings, loss of business opportunity, loss of goodwill or loss of data, whether in contract, tort (including negligence) or otherwise. The Service Provider's total aggregate liability arising out of or in connection with this Agreement will not exceed the total service fees paid or payable by the Client to the Service Provider under this Agreement in the three (3) months immediately preceding the event giving rise to the claim. This cap does not limit the Client's obligation to pay fees and other amounts properly due. The Parties acknowledge that the fees reflect this allocation of risk.

14. THIRD-PARTY PLATFORMS AND SERVICES

The Services may depend on third-party platforms and providers, including Google, Meta, website hosts, CRMs, analytics tools and communication services. Those providers are independent of the Service Provider and may change their terms, pricing, availability, algorithms, review processes or policies, or suspend or restrict accounts. The Service Provider is not responsible for third-party acts, omissions, outages, policy decisions or account restrictions, except to the extent directly caused by the Service Provider's breach of this Agreement or negligence. The Client remains responsible for complying with platform terms and policies.

15. TERMINATION FOR MATERIAL BREACH

Either Party may terminate this Agreement by written notice if the other Party commits a material breach and, where the breach can be remedied, fails to remedy it within fourteen (14) days after receiving written

notice describing the breach. Either Party may terminate immediately if the other Party becomes insolvent, ceases business, or is prohibited by law from performing the Agreement. The Service Provider may suspend work immediately where continued performance would be unlawful, materially unsafe or expose it to a credible security risk. On termination, the Client must pay all accrued fees, approved expenses and any lawful early termination amount under Section 8.

16. INDEPENDENT CONTRACTOR

The Service Provider acts as an independent contractor. Nothing in this Agreement creates a partnership, joint venture, employment, agency or fiduciary relationship. The Service Provider is responsible for its own taxes, social security contributions, registrations and business obligations in Brazil or elsewhere as applicable. The Service Provider has no authority to bind the Client or make commitments on the Client's behalf.

17. GENERAL TERMS

This Agreement and its Statement of Work form the entire agreement between the Parties concerning the Services and replace prior discussions on that subject. Any amendment must be in writing and accepted by both Parties, including by email where the intention to amend is clear. Neither Party may assign this Agreement without the other Party's written consent, except that the Service Provider may use suitably qualified subcontractors while remaining responsible for their work. If any provision is held invalid or unenforceable, the remaining provisions continue in force. A failure or delay in exercising a right is not a waiver. Notices may be sent by email to the addresses stated in this Agreement or the Statement of Work. Electronic signatures and counterparts are permitted. This Agreement is drafted in English; if translated, the English version prevails to the extent permitted by law.

18. GOVERNING LAW AND JURISDICTION

This Agreement and any non-contractual obligations arising out of or in connection with it are governed by the laws of England and Wales. The courts of England and Wales have exclusive jurisdiction to settle disputes arising out of or in connection with this Agreement, subject to any mandatory law that cannot validly be displaced by agreement.

19. SELECTED PLAN, CLIENT INFORMATION AND ACCEPTANCE

The following information must be captured from the Client's website checkout and order confirmation. The website may populate these fields automatically. The plan description, pricing and checkout record accepted by the Client are incorporated into this Agreement.

Selected plan name	Starter, 1 month (United Kingdom)
Plan description / included services	Google Ads or Meta Ads management (one platform); Campaign strategy and planning; Keyword research (Google Ads); Audience and location targeting; Ad creative planning; Basic conversion tracking; Monthly performance report.
Deliverables, limits and exclusions	As listed in the plan description, for 1 month. Anything not listed is excluded and may be quoted separately. Advertising spend is not included.

Price and currency	£120.90 (GBP), single payment
Billing frequency	Paid upfront in full for 1 month
Setup fee / discount / trial (if any)	No discount. No setup fee. No trial.
Plan-specific conditions	The full price for the selected period is paid in advance at the upfront price shown at checkout.
Advertising budget (paid separately by Client)	Paid by the Client directly to Google and/or Meta from the Client's own advertising accounts; amount to be agreed during onboarding.
Order ID and plan version	cs_test_a1clSm0A0onfiG4sjWIvIT7IXNC3tG3GPbO0rpNWNqDNwTJmDgMrwnWn7j · plans-2026-11
Order acceptance date and time	Sun, 01 Nov 2026 22:58:25 GMT
Service Start Date	To be confirmed by email after onboarding (when campaigns go live).
Client legal/business name	FNX TECH
Company number / registration / EIN (if applicable)	Not provided
Business address	Rua La Salle, Curitiba, 81880400, Brazil
Authorised representative and title	Yan Victor, CEO
Client email	yanvictorfs@gmail.com
Service Provider	Vinicius Conceição Molina, trading as Molina Growth Agency
Country	Brazil
Business email	molinagrowthagency@gmail.com

The Client confirms that it has reviewed the Selected Plan, this Agreement and the applicable website checkout terms, and agrees to them by completing the website acceptance process. The website should retain evidence of the accepted Agreement version, plan version, order ID, Client identity, date/time, price, billing frequency and affirmative acceptance. Any required acceptance checkbox must be unticked by default and actively selected by the Client. The Client should receive an electronic copy of this Agreement and the order confirmation.

Signed electronically by	Yan Victor
On behalf of	FNX TECH
Date and time (UTC)	Sun, 01 Nov 2026 22:58:25 GMT
IP address	2804:f30:2008:5997:e0d2:ca8:196b:76a
Agreement version	uk-2026-11-v1